



Erica Franzetti

Independent Arbitrator and Counsel

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Erica Franzetti is an independent arbitrator and international disputes counsel. With a 25-year legal career, she has extensive experience in commercial and investor-State arbitration across a wide range of industries and jurisdictions. She focuses her practice on serving as an independent arbitrator in complex cross-border disputes and on advising clients on dispute-resolution strategy, enforcement, and investment treaty protection. Her work has particular emphasis on energy, natural resources, and infrastructure disputes.

Serving as an arbitrator in U.S. and international disputes, including as chair of arbitral tribunals, she draws on longstanding track record across civil and common law traditions to manage proceedings efficiently, fairly, and with procedural rigor. She has acted as arbitrator and as counsel in arbitral proceedings under several sets of rules, including the ICC, AAA, ICDR, LCIA, ICSID, and UNCITRAL rules, and has deep experience with tribunal management and decision-writing. Her practical case management is informed by 17 years in major U.S. law firms, including eight as partner in globally recognized international arbitration teams.

Her arbitration practice spans proceedings seated or arising in Argentina, Brazil, Canada, Chile, Colombia, Croatia, the Dominican Republic, Ghana, Hungary, Mexico, Perú, the Philippines, and the United States, across sectors including commercial contracts (such as hotel management, distribution, intellectual property, and CISG matters), construction, concessions and infrastructure (including telecommunications, power generation, and highways), corporate governance and accountability (including M&A, shareholder and joint venture disputes, and venture capital investments), and energy and natural resources (including mining, oil and gas, LNG pricing, electricity generation, and nuclear energy).

Recognized in *Chambers & Partners*, *The Legal 500*, *Lexology* (formerly *Who's Who Legal*), *Latin Lawyer*, and *Best Lawyers*, she has also been named one of Latin America's Top 100 Female Lawyers by *Latinvex*. She regularly publishes and speaks on international commercial arbitration, investor-state arbitration, and dispute resolution strategy at international conferences and professional forums, and has taught at leading institutions including Georgetown University Law Center and the University of Miami School of Law. She is admitted to practice in Washington, D.C., New York, and Brazil, and works fluently in English, Spanish, and Portuguese.

PROFESSIONAL EXPERIENCE

King & Spalding LLP, Washington, DC and Miami, Partner, Sept. 2021 – Jan. 2026

Dechert LLP, Washington, DC, Partner / Counsel, Sept. 2015 – Sept. 2021

Weil, Gotshal & Manges LLP, Washington, DC, Senior Associate, Jul. 2012 – Sept. 2015

Crowell & Moring LLP, Washington, DC, Associate, Sept. 2008 – Jul. 2012

Wald & Advogados Associados, São Paulo, Brazil, Associate, Jul. 2001 – Sept. 2006

Dinamarco & Rossi Advocacia, São Paulo, Brazil, Associate / Intern, Jul. 1997 – Jul. 2001

TEACHING EXPERIENCE

University of Miami School of Law, Adjunct Professor, International Arbitration in the Energy Sector, 2024-2025

Georgetown University Law Center, Adjunct Professor, Investor-State Dispute Resolution, 2017-2022

EDUCATION

Georgetown University Law Center, LL.M. International Studies, Distinction and Dean's List, Washington D.C. (2008)

Getúlio Vargas Foundation (FGV), Postgraduate Specialization in Business and Economics Law, São Paulo, Brazil (2006)

University of São Paulo Law School, LL.B. (J.D. Equivalent), São Paulo, Brazil (2000)

ADMISSIONS

District of Columbia

New York

Brazil

PROFESSIONAL ASSOCIATIONS

Panel of Arbitrators of the International Centre of Dispute Resolution (ICDR)

Panel of Arbitrators of the American Arbitration Association (AAA)

Panel of Arbitrators of the Hong Kong International Arbitration Centre (HKIAC)

Panel of Arbitrators of the Brazil-Canada Chamber of Commerce (CAM-CCBC)

Panel of Arbitrators of the Capital Market Chamber of B3 S.A – Brasil, Bolsa, Balcão (CAM)

Panel of Arbitrators of the Chamber of Business Mediation and Arbitration – Brazil (CAMARB)

Arbitration and Mediation Center of the Brazil-Peru Chamber of Commerce (CAM-BP)

Arbitration & Mediation Committee of the International Court of Commerce (ICC) Brazil

Arbitration Committee of the United States Council for International Business (USCIB)

Arbitral Women

LANGUAGES

English · Spanish · Portuguese

NATIONALITY

United States · Brazil

RECOGNITION

Chambers and Partners

- Global, International Arbitration, 9 years ranked.
- USA, International Arbitration: Counsel, Band 6.
- Brazil, International Arbitration, Band 3.

Lexology (Formerly Who's Who Legal)

- Highly Recommended, International Arbitration

The Legal 500

- USA, Latin America, International Arbitration

Latin Lawyer

- International Arbitration LACCA Approved

Latinvex

- Latin America's Top 100 Female Lawyers (2024)

Best Lawyers

- The Best Lawyers in America: International Arbitration – Commercial (2026)

Lawdragon 500

- Leading Global Litigators (2025)

SELECTED MATTERS

*Matter conducted in English unless indicated otherwise.

As Arbitrator

- President of an arbitral tribunal in a CIESP-FIESP arbitration between a Brazilian company and a North American company concerning the breach of a distribution agreement governed by the laws of the State of Florida; seated in São Paulo.
- President of an arbitral tribunal in an ICDR arbitration between two multinational companies concerning the purchase of electric vehicle charging equipment governed by the laws of the State of Delaware.
- Co-arbitrator in an ICC dispute concerning the right to manage and control a shared digital platform used to provide services under a co-development real estate agreement governed by the laws of Brazil; seated in Miami.
- Co-arbitrator in an ICC dispute concerning contractual and technical disputes related to renewable energy infrastructure governed by the laws of Brazil; seated in São Paulo.
- Co-arbitrator in a CCBC corporate dispute arising out of a share purchase agreement governed by Brazilian law; seated in New York.

- Co-arbitrator in an ICDR construction dispute concerning a concession agreement for the development of a highway project in Latin America; proceedings in Spanish.
- Co-arbitrator in an ICDR construction dispute concerning a concession agreement for a large-scale infrastructure project in Latin America; proceedings in Spanish.
- Co-arbitrator in an ICDR arbitration between a food producer in the United States and a Peruvian company concerning a supply contract governed by Peruvian law; seated in Lima.
- Co-arbitrator in an ICDR arbitration between a Mexican and an American company concerning the sale of oilfield equipment governed by the laws of the State of Texas.
- Co-arbitrator in an ICDR arbitration between a Swiss and an American company concerning the breach of a sales agreement governed by the laws of the State of Florida.
- Member of an ad hoc committee appointed by CAM to decide on a challenge against an arbitrator in a shareholder dispute involving a major energy company; proceedings in Portuguese.
- Sole arbitrator in an ICDR arbitration between an American company and a Thai company involving a distribution agreement governed by the laws of the State of Maryland.
- Sole arbitrator in an arbitration under the AAA Commercial Rules concerning a claim for breach of a hotel management agreement.
- Sole arbitrator in an arbitration under the AAA Commercial Rules concerning a claim for breach of a franchise agreement in the hospitality industry.
- Sole arbitrator in an arbitration under the AAA Commercial Rules concerning a claim for breach of a services agreement in the financial services industry.
- Sole arbitrator in an arbitration under the AAA Commercial Rules concerning a claim for breach of a loan agreement in the financial services industry.

As Counsel

- Counsel to Claimant in *Quanta Services Netherlands B.V. v. Republic of Perú* (ICSID Case No. ARB/21/1), a dispute under the Netherlands-Perú Bilateral Investment Treaty (BIT) arising from measures related to concessions to build and operate fiber-optic networks.
- Advisor to Shell's subsidiary BG Overseas Limited with respect to an investment dispute against the Republic of Bolivia under the UK-Bolivia BIT involving regulatory measures affecting operation contracts for the extraction of hydrocarbons in Bolivia.
- Counsel to the Claimant in *Gasoducto Sur Peruano S.A. En Liquidación v. Republic of Perú* (ICSID Case No. ARB/24/29), a contractual dispute over a gas pipeline project that collapsed in the wake of the Odebrecht corruption scandal.
- Counsel to the Claimant in *MOL Hungarian Oil and Gas Company v. Republic of Croatia* (ICSID Case No. ARB/13/32), a dispute under the Energy Charter Treaty for measures related to the privatization of a Croatian oil and gas company, the supply of gas, and the criminal prosecution of Claimant's CEO for bribery accusations.
- Counsel to the Respondent in *Croatia v. MOL Hungarian Oil and Gas PLC* (PCA Case No. 2014-15), a contractual dispute under the UNCITRAL rules regarding shareholders' rights and the corporate governance of a Croatian oil and gas company, the validity of a gas master agreement, and corruption allegations.

- Counsel to the Respondent in *Chevron Overseas Finance GmbH v. The Republic of the Philippines* (PCA Case No. 2019-25), a dispute under the Philippines-Switzerland BIT and the UNCITRAL rules involving the Malampaya gas field.
- Counsel to the Claimant in *Ruby Roz Agricol LLP v. the Republic of Kazakhstan*, an UNCITRAL investment dispute about a Kazakh poultry farm investment concerning alleged breaches of an investment contract and the Kazakh Foreign Investments Law.
- Counsel to the Claimant in *Pac Rim Cayman LLC v. Republic of El Salvador* (ICSID Case No. ARB/09/12), a dispute under the Central America-Dominican Republic-United States Free Trade Agreement regarding the government's refusal to issue mining exploitation licenses.
- Advisor to a Canadian company regarding investment treaty protections in relation to an investment in Colombia's energy sector.
- Advisor to a Canadian company regarding investment treaty protections in relation to an investment in Peru's infrastructure sector.
- Advisor to an American landowner in Albania regarding investment treaty protections.
- Advisor to a Turkish citizen on the protections provided under investment treaties regarding investments in Turkmenistan.
- Assisted third-party funders and investment funds on the assessment, valuation, and strategy of investor-State and commercial disputes.
- Counsel to the Claimants in *Pluspetrol Perú et al. v. Perupetro* (ICSID Case No. ARB/12/28), a dispute arising out of a gas supply contract regarding royalty payments and the sale of liquified natural gas (LNG); proceedings in Spanish.
- Counsel to a multinational company in three ICC arbitrations concerning a multibillion-dollar shareholder dispute over the control of a Brazilian company arising out of a share purchase agreement governed by the laws of Brazil; proceedings in Portuguese and English.
- Counsel to a Guinean company in an ICC arbitration arising out of a mining services contract governed by the laws of the United Kingdom.
- Counsel to a state-owned Dominican Republic fund in an ICC arbitration involving the operations of a power company.
- Counsel to an American company against a construction Brazilian conglomerate in an ICC arbitration concerning an indemnity agreement governed by the laws of Brazil.
- Counsel to a logistics multinational company in an ICC arbitration against a Colombian company in connection with a commercial representation agreement governed by the laws of the State of Texas.
- Counsel to Petitioner *Redes Andinas de Comunicaciones S.R.L. v. Republic of Perú, et al.* (US District Court for the District of Columbia Civil Action No. 22-3631), a proceeding to recognize and enforce two ICC arbitral awards.
- Counsel to a multinational company against a Greek company in a JAMS arbitration arising out of a share purchase agreement governed by the laws of the State of New York.
- Counsel to a Brazilian company in an ICDR arbitration against an American company in connection with a distribution agreement governed by the laws of the State of New York.

- Counsel to an American company in an ICDR dispute involving a services agreement governed by the laws of the State of California.
- Counsel to an Argentine firm in an ICDR arbitration against a Chilean gas company in connection with a services agreement governed by Argentine law; seated in Santiago, proceedings in Spanish and English.
- Advisor to a Brazilian company and its American subsidiary regarding a Joint Operating Agreement governed by the laws of the State of Texas for the construction of an oil platform in Nigeria.
- Advisor to a Dutch investor on financing and corporate governance matters connected to a joint venture agreement governed by the laws of the State of Delaware for the development of a startup nuclear energy project in Latin America.
- Advisor to a major oil and gas company regarding an LCIA dispute arising out of a services agreement governed by the laws of the United Kingdom.
- Advisor to a multinational chemical company in pre-dispute negotiations involving a steam supply agreement governed by the laws of Brazil.
- Counsel to Dotguy LLC in a dispute concerning ICANN's internal governance and accountability mechanisms with respect to the assignment of a top-level domain.
- Counsel to Dotmusic LLC in a dispute concerning ICANN's internal governance and accountability mechanisms with respect to the assignment of a top-level domain.
- Counsel to Claimant in *Amazon.com, Inc. v. ICANN* (ICDR Case No. 01-16-0000-7056) concerning ICANN's internal governance and accountability mechanisms with respect to the assignment of a top-level domain.
- Counsel to Claimant in *DotConnectAfrica Trust v. ICANN* (ICDR Case No. 50-117-T-1083-13) concerning ICANN's internal governance and accountability mechanisms with respect to the assignment of a top-level domain.
- Counsel to Claimant in *ICM Registry v. ICANN* (ICDR Case No. 50-117-T-00224-08) concerning ICANN's internal governance and accountability mechanisms with respect to the assignment of a top-level domain.

SPEAKING ENGAGEMENTS

- Sentenças Arbitrais e a Ordem Pública Uma Visão Comparada do Problema — 4th Congress on Arbitration and Public Administration, Canal Arbitragem/CAMARB, Brasília (March 17, 2026).
- Using Witness Statements in Arbitration in Latin America, ICDR/Ciarb/University of Miami School of Law, Miami (March 2, 2026).
- Courts and Arbitration: Tension, Trust, and Transformation: Are Specialized Courts Taking Over? — Georgetown Arbitration Month GIAS Panel, Georgetown University Law Center, Washington D.C. (February 5, 2026).
- Corruption in Arbitration: Tackling Fraud and Bribery in Latin America's Commercial Landscape — HardTalk, Miami (December 4, 2025).
- Energy Infrastructure Disputes — AIEN/ICC: Dispute Resolution in the Energy Business, Rio de Janeiro (October 3, 2025).

- Parallel Arbitration and Criminal Proceedings Involving Corruption Allegations — Sovereign & States Litigation Summit USA, Washington D.C. (September 24, 2025).
- International Construction Arbitration: Infrastructure Projects with Sovereigns — iLaw2025 The ILS Global Forum on International Law AAA-ICDR International Arbitration Track (February 7, 2025).
- Increase in Disputes in Oil & Gas Industry — HardTalk, Miami (December 4, 2024).
- Arbitragem no Setor de Aviação Comercial com Partes Brasileiras — Arbitration Channel Webinar (October 29, 2024).
- The Future of International Arbitration — Georgetown University Law Center, Washington D.C. (February 29, 2024).
- So You're an International Arbitrator, How to Approach and Handle Some of the Issues That May Arise — iLaw2024, The ILS Global Forum on International Law AAA-ICDR International Arbitration Track (February 16, 2024).
- Considerations About the Seat of Arbitration — Georgetown Brazilian Arbitration Day, Georgetown University Law Center, Washington D.C. (January 24, 2024).
- Greener Grass or Scorched Earth: The Impact of Legislation and Court Reform on Arbitration Friendliness in the Americas — Chartered Institute, North American Branch and JAMS, Miami (November 8, 2023).
- Roundtable on Enforcement Proceedings, Asset Tracing and Funding to Enforce and Collect — Miami International Arbitration Society, Miami (October 18, 2023).
- Contratos Comerciais e Arbitragem em Setores Regulados: Autonomia das Partes e Heteronomia Regulatória — CBAR 22nd International Arbitration Conference, Rio de Janeiro (September 14, 2023).
- The Arbitration Proceedings — Lecture at the Summer School on International Arbitration, NOVA School of Law, Lisbon (July 2023).
- Corruption in International Arbitration and Enforcement Proceedings — Annual Conference of the Penn Carey Law International Arbitration Association (March 24, 2023).
- Discovery in International Arbitration — Brazilian Arbitration Committee (CBAR) Study Group Roundtable (March 16, 2023).
- The Practical Impacts of the Supreme Court's Ruling on Section 1782 Discovery — II Brazilian Arbitration Day, Georgetown University and the Arbitration Channel (January 26, 2023).
- Practical Issues on Producing Evidence in International Arbitration — New York University, Columbia University, and the Brazilian-American Chamber of Commerce (August 26, 2022).
- Closing Remarks of I Brazilian Arbitration Day — Georgetown University Law Center and Arbitration Channel (April 8, 2022).
- Corruption in International Arbitration — I Brazilian Arbitration Day Congress, Georgetown University and the Arbitration Channel (April 8, 2022).

- Supply Chain Disputes — AAA-ICDR International Arbitration Track of the Florida Bar's International Law Sectional Annual Event (April 1, 2022).
- ICDR Rules on International Dispute Resolution Procedures — The Chartered Institute of Arbitrators (CIArb) Brazil Branch (December 8, 2021).
- Hot Topics Related to Arbitration — Brazilian-American Chamber of Commerce, New York City (November 30, 2021).
- Key Types of Privileges and Their Application in International Disputes — Dechert LLP Webinar Series (March 17, April 5, April 28, 2021).
- Virtual Hearings in International Arbitration — Vancouver International Arbitration Centre Webinar (October 5, 2020).
- Key Considerations for Legal Positions on Force Majeure: Practical Steps if Disputes are Inevitable — Nairobi Centre for International Arbitration Webinar (August 13, 2020).
- From NAFTA to USMCA: A Discussion on Key Changes to Trade and Investment — Dechert LLP Webinar (July 29, 2020).
- Procedimentos Virtuais e Táticas de Guerrilha em Arbitragem — INOVARB AmCham Brazil Webinar (June 4, 2020).
- Arbitrajes Virtuales: Ventajas e Inconvenientes — IPA Instituto Peruano de Arbitraje Webinar (May 14, 2020).
- Tribunal's Power to Sanction Misconduct — ILA American Branch Investment Law Committee and Georgetown International Arbitration Society, Washington, D.C. (February 28, 2020).
- Investor-State Disputes – A New Dawn in Treaty Reform? — Who's Who Legal Future Leaders: Arbitration Conference USA, Washington, D.C. (November 14, 2019).
- Arbitration, Cybersecurity and Data Protection — VI CAM-CCBC Arbitration Congress, São Paulo (October 22, 2019).
- Social Media, Internet and BIT Protections — FDI Pre-Moot Opening Event, Mattos Filho, Veiga Filho, Marrey Jr e Quiroga Advogados, São Paulo (October 18, 2019).
- This House Believes that the Current Format of Investment Treaty Awards Undermines the Legitimacy of an Investor-State Arbitral Dispute Settlement — Fifth Annual GAR Live BITs, Washington, D.C. (May 16, 2019).
- La Jurisprudencia Como Arma. ¿Es Urgente y Necesaria La Fijación de Criterios Jurisprudenciales Predecibles Por Las Cortes Nacionales Sobre Los Cuestionamientos a Los Laudos Arbitrales? — XII Congreso Internacional de Arbitraje, IPA, Lima, (April 24, 2019).
- Ongoing Challenges to International Investment Arbitration — 3rd Annual IAA Conference, Philadelphia (March 22, 2019).
- ¿Ha Llegado el Invierno al Arbitraje? ¿Crisis, Ética y Corrupción? — Conferencia Internacional de Mujeres en Arbitraje, Instituto Peruano de Arbitraje, Lima (January 31, 2019).
- ¿Cómo Afrontar un Arbitraje Nacional o Internacional de Asociación Público-Privada? — Lima (January 30, 2019).

- HIALSA Arbitration Workshop: Evidence in International Arbitration — Cambridge, Massachusetts (October 2, 2018).
- Introduction to International Commercial & Investment Arbitration — American University, Washington College of Law, Washington, D.C. (September 27, 2018).
- Duty to Disclose and Brazilian Arbitration Culture — CCMA CIESP/FIESP Congress Arbitration Day, New York, NY (April 17, 2018).
- Energy Across Borders: Geopolitics, Conflict and International Arbitration — Energy Days Conference, Pennsylvania State University, Pennsylvania (May 22, 2017).
- Visión de los Árbitros y Abogados Sobre el Desarrollo del Arbitraje Internacional — Congreso de Arbitraje Nacional e Internacional, Centro de Arbitraje y Conciliación, Bogotá (April 2, 2017).
- Arbitration and Public Administration: A Reality in Latin American Countries? Case Law and Position of the Judiciary Branch — III Congresso Pan-Americano de Arbitragem CAM-CCBC, São Paulo (October 24, 2016).
- Aspectos Prácticos del Arbitraje Internacional — International Centre of Dispute Resolution, International Arbitration Symposium, New York (May 27, 2016).
- Strategies for Faster and Cheaper Cross-Border Disputes — GNY Signature CLE Program, New York (January 14, 2016).
- Is International Arbitration Really Open to New Faces? — 27th Annual ITA Workshop: Subconscious Influences of International Arbitration, Dallas (June 17, 2015).
- Dispute Resolution Current Trends Involving Arbitration and Compliance Issues in Brazil — Georgetown University Law Center, Washington, DC (September 15, 2014).
- Specific Themes of Doing Business in Latin America — ABA Section of International Law, New Perspectives for Infrastructure Projects in Latin America, São Paulo (August 24, 2013).
- Budgeting and Managing an International Arbitration: How to Keep Arbitration Cost-Efficient and Effective — ABA Section of International Law 2013 Spring Meeting, Washington, DC (April 24, 2013).
- U.S. Judicial Discovery for Use in International Commercial Arbitration, Guest Lecturer — International Commercial Arbitration Class at Georgetown University Law Center, Washington, D.C. (November 19, 2012).
- O Papel do Árbitro na Avaliação de Danos — XI Congresso do Comitê Brasileiro de Arbitragem — CBAr: Aspectos Econômicos da Arbitragem, Porto Alegre (September 2012).
- How to Handle a BIT Arbitration — Ninth Annual Seminar on International Commercial Arbitration at American University's Washington College of Law, Washington, DC (October 3, 2012).
- Documentary Evidence and the Use of Discovery, Evidence in International Arbitration — ICDR Young & International e ICC Young Arbitrators Forum, Bogotá (September 2010).
- Jurisdictional Issues in ICSID Arbitration — Seminar on International Legal Issues Presented to the Government of the Republic of Colombia, Bogotá (June 2009).

PUBLICATIONS

- Arbitragem de Emergência: O Fim da Dependência das Cortes Nacionais?, chapter to *AASP Law Review – Issue 169*, marking the 30th anniversary of the Brazilian Arbitration Act (co-author), coordinated by Ana Cândida Menezes Marcato and Silvia Rodrigues Pachikoski (2026).
- The Role of Counsel in International Arbitration: Set-Aside Steps, chapter of book *International Arbitration in Practice* (co-author), edited by Courtney Lotfi, Alicja Zielinska-Eisen and Veronica Sandler Obregon – *Kluwer International Law* (2024).
- Lei de Arbitragem Comentada: Lei No. 9.307/1996 (co-author, comments to Article 12), *Revista dos Tribunais* (2023).
- Litigation Alternatives for COVID-19 Hospitality Disputes – *Law360* (May 11, 2020).
- Navigating Investors' Rights under the USMCA – co-author, *Transnational Dispute Management*, Vol. 17, Issue 3 (March 2020).
- Mining Arbitration in Latin America: Social and Environmental Issues in Investment Arbitration Cases – co-author, *Global Arbitration Review: The Guide to Mining Arbitrations* (July 01, 2019).
- Construction Contracts in Brazil – *Lexology Q&A* (March 15, 2019)
- A Structured Guide to Arbitration Law and Practice in Brazil – *Lexology Q&A* (17 September 2014, updated in March 2019).
- United States: Arbitration Q&A – *The In-House Lawyer* (October 2018).
- Arbitragem Comercial Envolvendo Administração Pública: uma Realidade na América Latina? – co-author, *Revista Visão Jurídica* (April 2017).
- Lições a Respeito de Decisões Vinculantes e Não Finais Proferidas por Dispute Adjudication Boards: o Caso CRW Joint Operation v. PT Perusahaan Gas Negara (PERSERO) – co-author, *Revista de Arbitragem e Mediação – RArb*, n° 48 (April 2016).
- Directrices Prácticas Para la Redacción del Acuerdo Arbitral (Co-author) – co-author, *Tratado de Derecho Arbitral*, Vol. 2 (March 2011).
- U.S. Judicial Discovery in Private International Arbitration: Outlook Remains Uncertain – *Miami Arbitration Reports*, Vol. 1, Issue 5 (October 2009).